

Decided On : 20Th November vs Ravinder Kumar on 20 November, 2024

2024:HHC:12228 IN THE HIGH COURT OF HIMACHAL PRADESH AT SHIMLA CMPMO No:97
o f 2 0 2 4 D e c i d e d o n : 2 0 t h N o v e m b e r , 2 0 2 4
_____ Neelam

...Petitioner Versus Ravinder KumarRespondent Coram Hon'ble Mr. Justice Ranjan Sharma,
Judge 1 Whether approved for reporting? For the petitioner : Ms. Kaushiki, Advocate vice Dr. Rajesh
Kumar Parmar, Advocate.

For the respondent : Mr. Jeevan Kumar, Advocate.

Ranjan Sharma, Judge [Oral] Respondent, namely, Ravinder Kumar, has filed a HMA No.160 of
2023, titled as Ravinder Kumar versus Neelam, under Section 9 of Hindu Marriage Act, for
restitution of conjugal rights, which is pending before the Learned Principal Judge (Family Court)
Nalagarh, District Solan, Himachal Pradesh.

2. By way of this petition, the petitioner-wife, Neelam, has filed the instant CMPMO with the 1
Whether reporters of Local Papers may be allowed to see the judgment? Yes

-2- 2024:HHC:12228 following relief:-

" It is, therefore, most humbly and respectfully prayed that present petition may very
kindly be allowed and petition for restitution of conjugal rights titled as "Ravinder
Kumar Vs. Neelam"

Registration No.160/2023, filing Date 25.11.2023 (filed by respondent husband) may very kindly be
transferred from Ld. Family Court Nalagarh to ld. Family Court Shimla, in the interest of justice,
equity and fairplay." FACTUAL MATRIX:

3. Case set up by Ms. Kaushiki, Learned Vice Counsel appearing on behalf of Dr.
Rajesh Kumar Parmar, Learned Counsel for petitioner is that the marriage of
Petitioner-Neelam was solemnized with Respondent-Ravinder Kumar on 07.03.2019
at Shree Sanket Mochan Mandir, Tara Devi, Shimla and they have a three-year-old
daughter named Miss Yanvi Sharma, who is currently in the custody of the petitioner.
Post-marriage, the Respondent, a drug addict, subjected the petitioner to severe
physical and emotional abuse. Parties, relatives and others [NGO's and Gram
Panchayat] made efforts for amicable resolution, but such attempts proved futile as
the continued subjecting the petitioner-wife to verbal abuse, threats to her life and
that of her child

-3- 2024:HHC:12228 and resorted to unwarranted acts.

3(i). Fearing for her safety, the Petitioner was compelled to leave her matrimonial home and is currently residing in a rented accommodation at Shimla. Petitioner filed a petition for dissolution of marriage under Section 13 of the Hindu Marriage Act and has filed another petition for maintenance under Section 125 of the Code of Criminal Procedure, which are pending before Learned Principal Judge, [Family Court] Shimla.

3(ii). Petitioner further submits that she has no means of livelihood and she has no movable and immovable property in her name and she is unable to attend the proceedings at Shimla due to financial constraints. It is further averred that on the other hand the respondent is financially well of having sharing movable and immovable properties who can come over to Shimla, which will not cause any prejudice to the Respondent, who can attend both the proceedings [HMA case under Section 13 of Hindu Marriage Act and Maintenance Case under Section 125

-4- 2024:HHC:12228 of the Code of Criminal Case] at one place i.e. Shimla [H.P].

In above background, the petitioner has prayed that the proceedings i.e. HMA No.160 of 2023, titled as Rajeev Ravinder Kumar versus Neelam, pending before the Court of Learned Principal Judge (Family Court), Nalagarh [HP] may be transferred to the Court of Learned Principal Judge [Family Court] Shimla [HP].

PROCEEDINGS BEFORE THIS COURT:

4. Upon issuance of notice on 05.03.2024, Mr. Jeevan Kumar, Learned Counsel appeared for the Respondent.

4(i). Upon listing of the case today, no serious opposition has been made by the learned Counsel for Respondent to the prayer in these proceedings.

5. Heard, Ms. Kaushiki, learned vice counsel as well as Mr. Jeevan Kumar, learned counsel for the respondent for some time and have perused the material on record.

-5- 2024:HHC:12228 MANDATE OF LAW REGARDING TRANSFER OF PROCEEDINGS:

6. While dealing with the issue of transfer of proceedings from one court to another in matrimonial matters, the convenience of wife is to be preferred over convenience of husband, in terms of the mandate of the Hon'ble Supreme Court in the case of Rajani Kishor Pardeshi Versus Kishor Babulal Pardeshi (2005) 12 SCC 237, in following terms:-

" In this type of matter, the convenience of the wife is to be preferred over the convenience of the husband. Hindu Marriage Petition No.6 of 2004, Kishor Babulal Pardeshi v. Rajani Kishor Pardeshi pending before the Court of Civil Judge, Senior Division at Panvel, Mumbai, Maharashtra is transferred to the Family Court of proper jurisdiction at Satana, Madhya Pradesh."

6(i). In Civil Appeal No.4894 of 2022 [arising out of SLP(C) No(s).16465 of 2021], titled as N.C.V. Aishwarya versus A.S. Saravana Karthik Sha, the Hon'ble Supreme Court has outlined the cardinal principles for considering prayer for transfer of proceedings, from one Court-place to another, in matrimonial matters, in following terms:-

"8. It is not disputed that the appellant is the resident of Chennai and that the appellant's

-6- 2024:HHC:12228 husband-respondent herein is the resident of Vellore and he is employed. The appellant who is 21 years old does not have any source of income of her own as she is not employed and is totally dependent on her parents for her livelihood. In order to attend the court proceedings of the case filed by her husband at Vellore she has to travel alone all the way from Chennai to Vellore as her parents are not in a position to accompany her on account of their old age. Secondly, the appellant has also filed a petition, H.M.O.P. No.1741 of 2021, for restitution of conjugal rights and another petition, M.C. Sr. No.672 of 2021, for her maintenance before the Family Court at Chennai.

9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socioeconomic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer.

10. Further, when two or more proceedings are pending in different Courts between the same parties which raise common question of fact and law, and when the decisions in the cases are interdependent, it is desirable that they should be tried together by the same Judge so as to avoid multiplicity in trial of the same issues and conflict of decisions."

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ANALYSIS:

7. Taking into account the entirety of the facts and circumstances of the case and the cardinal principles outlined by the Hon'ble Supreme Court, in N.C.V. Aishwarya's case [supra], this Court is of considered view, that the present petition deserves to be

allowed, for the reason, that firstly, the convenience of petitioner-wife has to prefer over the convenience of the Respondent; and secondly, once the petitioner-wife asserts herself to be economically unsound; having no source of livelihood and having no movable or immovable property in her name also supports the plea of the petitioner; and thirdly, the financial constraints of the petitioner-wife restrain her going from Shimla [in District Shimla] to Nalagarh [in District Solan] to attend each and every hearing(s) of case is also a relevant factor; and fourthly, the transfer of instant proceedings will enable the parties to participate in two other pending cases i.e. HMA Case for dissolution of marriage and Maintenance Case under Section 125 Cr.P.C., at one place [at Shimla],

-8- 2024:HHC:12228 which shall certainly effectuate the cause of justice between the parties herein; and lastly, once the Learned Counsel for the Respondent has also not seriously opposed the prayer of the petitioner then, in these circumstances, the plea of the petitioner carries weight and deserves to be allowed.

7(i). A similar issue, praying for transfer of proceedings from one Court to another, has been granted in CMPMO No.604 of 2023, titled as Manisha Thakur versus Akash Chauhan, decided on 05.12.2023 and in CMPMO No.688 of 2023, titled as Sumiti Chandel versus Parvesh Singh, decided on 10.01.2024 in following terms:-

"6. In view of the mandate of law referred to above, and the no objection accorded by the learned counsel for the respondent herein; the present petition is allowed and H.M. Misc. Petition No. 351 of 2023, titled as Parvesh Singh Vs Sumiti Chandel, pending before the Additional Principal Judge Family Court Hamirpur, Himachal Pradesh is ordered to be transferred to the Principal Judge, Family Court, Solan, Himachal Pradesh."

7(ii). In a matter having similar facts and situation, this Court has allowed the transfer of

-9- 2024:HHC:12228 proceedings on request of wife, in CMPMO No.706 of 2023, titled as Chandni versus Rajeev Pathik, decided on 04.11.2024, in following terms:-

"8. In view of the above discussion and for the reasons, recorded herein-above, the present petition is allowed; and the proceedings i.e. HMA No.179-S/3 of 2023, titled as Rajeev Pathik versus Chandni, pending before the Court of Learned Principal Judge (Family Court), Shimla (HP) are ordered to be transferred to the Court of Learned Principal Judge [Family Court] Mandi, District Mandi [HP]."

CONCLUSION AND DIRECTION:

8. In view of the above discussion and for the reasons, recorded herein-above, the present petition is allowed; and the proceedings i.e. HMA No.160 of 2023, titled as Rajeev Ravinder Kumar versus Neelam, pending before the Court of Learned

Principal Judge [Family Court], Nalagarh, District Solan [HP] are ordered to be transferred to the Court of Learned Principal Judge [Family Court] Shimla, District Shimla [HP].

9. Consequent upon the directions hereinabove, Registry is directed to inform the Court of Learned Principal Judge (Family Court),

- 10 - 2024:HHC:12228 Nalagarh, District Solan [HP] to transfer the entire case records of HMA No.160 of 2023, titled as Ravinder Kumar versus Neelam, to the Court of Learned Principal Judge (Family Court) Shimla, District Shimla [HP] within two weeks from today; with directions to Family Court [Shimla] to issue fresh notice(s) to the parties and then to proceed further in the matter, in accordance with law.

In aforesaid terms, the instant writ petition is allowed and all pending miscellaneous application(s), if any, shall also stand disposed of, accordingly.

(Ranjan Sharma) Judge November 20, 2024 (Shivender)